

JACKSON VS. ENTERPRISE ELEMENTARY SCHOOL DISTRICT, ET AL.

Case Number: 24CV-0206371

Tentative Ruling on Motion for Leave to Amend: Plaintiff Kamarin Jackson moves for leave to file a Second Amended Complaint that adds a Seventh Cause of Action. Despite being properly noticed, Defendants Enterprise Elementary School District and Kristin Bowling did not file an Opposition. The procedural requirements for a motion to amend a pleading are set forth in CRC 3.1324 and have been satisfied by Plaintiff.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings, or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. *See, e.g., Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649.

The Court finds that the motion was timely made. Plaintiff has provided good cause for the proposed amendment. No evidence of prejudice has been presented, and Plaintiff has provided an explanation for the delay in amending. The Court notes that the trial in this matter is scheduled for September 30, 2025. However, as no Opposition was filed, the Court does not consider the upcoming trial date to be a sufficient reason to deny the motion.

The motion is **GRANTED**. Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling. Plaintiff is ordered to file the Second Amended Complaint within 10 days of today's hearing date.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Proposed Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025, to Petitioners John Wesley Bowen and Steven Christopher Jewett, for failure to appear on February 24, 2025, as ordered on January 23, 2025; failure to appear on January 13, 2025, as ordered on November 13, 2024; and failure to provide notice to Respondents, as ordered on November 13, 2025. There is still no valid Proof of Service on file. Petitioners did not file a response to the Order to Show Cause Re: Dismissal. Monetary sanctions have already been imposed. It appears that Petitioners have made no efforts to effect proper service or pursue the litigation that they initiated.

Without sufficient excuse for the delay and because previous sanctions appear to have been ineffective, the matter is **DISMISSED** without prejudice. All future dates are vacated. The clerk is directed to close the file.

KUNAU VS. CITY OF REDDING, ET AL.

Case Number: 24CV-0205953

Tentative Ruling on Motion to Strike: Defendant City of Redding moves to strike the reference to Gov. Code